

IN THE SUPREME COURT OF BANGLADESH  
HIGH COURT DIVISION  
(CIVIL REVISIONAL JURISDICTION)

**Present:**

**Mr. Justice S M Kuddus Zaman**

**CIVIL REVISION NO.6325 of 2023.**

In the matter of:

An application under section  
115(1) of the Code of Civil  
Procedure.

And

Hashem Khandoker

**...Petitioner**

-Versus-

Jesmin Akhter Jemi and others

**...opposite parties**

Mr. Bhabesh Chandra Mustafi, Advocate

**...For the petitioner**

Mr. Md. Hekam Ali, Advocate

**...For the opposite parties**

**Heard & Judgment on: 04.09.2024.**

This Rule was issued calling upon the opposite parties to show cause as to why the judgment and decree dated 25.06.2023 (decree signed on 27.06.2023) passed by the learned District Judge, Gaibandha in Family Appeal No.47 of 2022 dismissing the appeal and thereby affirming the judgment and decree dated 13.06.2022 (decree signed on 15.06.2022) passed by the learned Family Judge, Palashbari, Gaibandha in Family Suit No.32 of 2019 decreed the suit in part should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the opposite party as plaintiff instituted above suit for recovery of her unpaid dower of Tk.2,25,001/- and maintenance for herself self and her minor baby plaintiff No.2.

Defendant No.1 contested the suit by filing a written statement alleging that Tk.1,50,000/- out of the unpaid dower of the plaintiff was paid in C. R. Case No.77 of 2019. As such above money will have to be deducted from the dower of the plaintiff.

At trial plaintiff himself gave evidence as P.W.1 and produced and proved the kabinnama which was marked as Exhibit No.1. On the other hand defendant examined four witnesses and produced and proved documents which were marked as Exhibit No.D.

On consideration of facts and circumstances of the case and evidence on record the learned Judge of the Family court decreed above suit for Tk.2,25,001/- as dower and paid maintenance for both the plaintiffs at the rate of Tk.3000/- per month but no past maintenance was given. The maintenance of the baby girl shall increase at 10% per year.

Being aggrieved by above judgment and decree of the Family Court above defendant preferred Family Appeal No.47 of 2022 to the District Judge,

Gaibandha who dismissed above appeal and affirmed the judgment and decree of the Family Court.

Being aggrieved by above judgment and decree of the court of appeal below the appellant as petitioner moved to this court and obtained this rule.

Mr. Bhabesh Chandra Mustafi learned Advocate for the petitioner submits that the petitioner does not have any objection with regard to the quantum of dowry and maintenance awarded by the Family Court to the plaintiffs. But his only objection is the rate of annual enhancement of the maintenance of plaintiff No.2. The learned Judges of both the courts below has granted 10% annual enhancement of the maintenance of plaintiff No.1 which is unreasonable and oppressive.

Mr. Md. Hekam Ali learned Advocate for the opposite party submits that on consideration of facts and circumstances of the case and evidence on record the learned Judges of both the court below concurrently held that the plaintiff No.1 is entitled to get Tk.225001/- as dower and granted maintenance for both the plaintiffs at Tk.3000/- per month. The learned Judges also took into account the annual rate of inflation and increasing cost of a baby girl and accordingly ordered for 10% annual enhancement of the

maintenance of plaintiff No.2 which calls for no interference.

I have considered the submissions of the learned Advocates for respective parties and carefully examined all materials on record.

As mentioned above while giving evidence as P.W.1 the plaintiff produced and proved the registered kabinnama which was marked as Exhibit No.1. The defendant did not disputed the correctness and authenticity of above registered kabinnama which shows that the dower of the plaintiff was fixed at Tk.3,00,001/- and Tk.70,000/- was paid. As such the learned Judges of the courts below rightly awarded Tk.2,25,001/- as the remaining dower of the plaintiff No.1.

As far as the rate of maintenance of plaintiffs are concerned the learned Judges of both the courts below fixed the same at Tk.3000/- per month. The learned Advocate for the petitioner frankly concedes that above rate of the maintenance is reasonable and he did not raise any objection against the same.

As far as annual increment of above maintenance at the rate of 10% per year is concerned the learned Judges of both the courts below taking into account the rate of annual monetary inflation and increased cost of a baby girl on every passing year due to additional money for her food, lodging, clothing and education fixed 10% enhancement of above Tk.3000/-.

In above view of the materials on record I am unable to find any substance in above submissions of the learned Advocate for the petitioner nor I find any infirmity and illegality in the impugned judgment and decree passed by the learned Judge of the Court of appeal below.

I am unable to find any substance in the petition under section 115 of the Code of Civil Procedure and the rule issued in this connection is liable to be discharged.

Let the copy of this judgment be transmitted down at once.